

STATE OF NEW YORK

2685--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 22, 2025

Introduced by M. of A. TAPIA, HEVESI, STECK, SANTABARBARA, LUNSFORD, REYES, RIVERA, McDONALD, CRUZ, KIM, BERGER -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to limited-scope radiographers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1, paragraph (c) of subdivision 2 and subdivision 4 of section 3502 of the public health law, as added by chapter 175 of the laws of 2006, are amended to read as follows:

1. The department shall issue separate licenses in the areas of radiography, radiation therapy and nuclear medicine technology to individuals who qualify under section thirty-five hundred five of this title. The department shall issue limited-scope radiographer licenses to individuals who qualify under sections thirty-five hundred three and thirty-five hundred five of this title.

(c) only persons licensed under this article shall practice radiography, radiation therapy or nuclear medicine technology or use the title "limited-scope radiographer," "radiographer," "radiologic technologist," "radiation therapist" or "nuclear medicine technologist" or use the abbreviations LRT, RTT, LRTT, NMT, or LNMT with [~~his or her~~] such person's name; and

4. No radiologic technologist shall administer or inject intravenous contrast media unless (a) the individual is certified by the department to perform such function in accordance with the commissioner's rules and regulations (b) such administration or injection has been approved by a physician, physician's assistant, nurse practitioner or registered professional nurse within twenty-four hours prior to the administration

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 or injection (c) a physician, physician's assistant, nurse practitioner
2 or registered professional nurse performs an evaluation of the patient
3 on the day of the procedure. Administration or injection of contrast
4 media means and is limited to the placement or insertion of a needle or
5 a catheter, not exceeding three inches in length and not above the level
6 of the axilla into a person's upper extremity and the administration or
7 injection of the intravenous contrast media, manually or by mechanical
8 injector, but does not mean the determination of the type or volume of
9 media to be administered or injected. Limited-scope radiographers shall
10 not be authorized under this article to inject intravenous contrast
11 media.

12 § 2. Subdivision 17 of section 3501 of the public health law, as added
13 by chapter 175 of the laws of 2006, is amended to read as follows:

14 17. "Supervision" means the oversight of a licensed radiologic tech-
15 nologist or a limited-scope radiographer, as applicable, by a licensed
16 practitioner acting within the limits specified in the law under which
17 the practitioner is licensed.

18 § 3. Section 3501 of the public health law is amended by adding two
19 new subdivisions 4-a and 13 to read as follows:

20 4-a. "Limited-scope radiographer" shall mean a person licensed pursu-
21 ant to section thirty-five hundred three of this article to practice
22 radiography limited to chest, extremities, skull/sinus, and spine/sacrum
23 at urgent care centers. The limited-scope radiographer shall not utilize
24 fluoroscopy.

25 13. "Urgent care center" shall mean any medical practice location that
26 provides immediate and on-site evaluation, diagnosis, and treatment of
27 non-emergent, acute illnesses or injuries during posted hours of opera-
28 tion, primarily or exclusively on a walk-in or after-hours basis.

29 § 4. The public health law is amended by adding a new section 3503 to
30 read as follows:

31 § 3503. Limited-scope radiographers. 1. A license to practice as a
32 limited-scope radiographer shall authorize a holder of such license to
33 practice radiography at urgent care centers under the supervision of a
34 licensed practitioner or licensed registered radiologic technologist.

35 2. The commissioner shall establish standards that educational
36 programs in limited radiography must meet to be approved as a limited
37 radiography education program in New York state. Courses shall include,
38 at a minimum, a total of one hundred fifty hours of didactic content
39 that must address radiographic anatomy, procedures, and pathology,
40 digital image acquisition and display, fundamentals, ethics, and laws of
41 healthcare, human anatomy and physiology, image production and analysis,
42 imaging equipment and radiation production, medical terminology, and
43 patient care. A minimum of two hundred forty hours of clinical training
44 must also be incorporated that includes a minimum of five clinical
45 competencies, in each anatomical area that the limited-scope radiogra-
46 pher will image, performed under direct supervision of a radiologic
47 technologist. Upon completion of the course, successful completion of a
48 standardized accreditation examination that assesses the knowledge and
49 cognitive skills underlying the intelligent performance of the tasks
50 typically required of a limited-scope radiographer is required. Any
51 such course or accrediting examination shall be approved by the commis-
52 sioner and no person, institution or agency shall offer a course of
53 study in limited-scope radiography unless such course of study is regis-
54 tered by the department or by the department of education and meets such
55 standards of quality, character and competence of sponsors and offi-
56 cial, financial resources, public need, and other pertinent matters as

1 may be prescribed by the commissioner or by the commissioner of educa-
2 tion in appropriate rules and regulations.

3 3. The commissioner shall establish a registration process by which
4 individuals may submit an application to the commissioner to be licensed
5 as a limited-scope radiographer pursuant to this section. Such registra-
6 tion process and application shall be consistent with the provisions of
7 section thirty-five hundred seven of this title and shall include:

8 (a) an attestation that the applicant has completed an approved course
9 and accrediting examination pursuant to subdivision two of this section,
10 and received a passing score on such accrediting examination as deter-
11 mined by the commissioner; and

12 (b) any other information as may be required by the commissioner.

13 4. The commissioner shall be authorized to promulgate any rules and/or
14 regulations necessary for the effective implementation of this section.

15 § 5. The opening paragraph and paragraphs (d), (f) and (p) of subdivi-
16 sion 1 of section 3510 of the public health law, the opening paragraph
17 as amended and paragraph (p) as added by section 97 of part E of chapter
18 56 of the laws of 2013, and paragraphs (d) and (f) as added by chapter
19 175 of the laws of 2006, are amended to read as follows:

20 The license, registration or intravenous contrast administration
21 certificate of a radiologic technologist, or license to practice as a
22 limited-scope radiographer, may be suspended for a fixed period, revoked
23 or annulled, or such licensee censured, reprimanded, subject to a civil
24 penalty not to exceed two thousand dollars for every such violation, or
25 otherwise disciplined, in accordance with the provisions and procedures
26 defined in this article, provided that no civil penalty shall be
27 assessed for any crime or misconduct that occurred outside the jurisdic-
28 tion of New York state upon decision after due hearing that the individ-
29 ual is guilty of the following misconduct:

30 (d) aiding and abetting in the practice of radiologic technology a
31 person who is not a registered radiologic technologist or limited-scope
32 radiographer or who is practicing a form of radiologic technology which
33 is beyond the scope of the individual's license;

34 (f) falsely impersonating a duly registered radiologic technologist or
35 limited-scope radiographer or former duly registered radiologic technol-
36 ogist or limited-scope radiographer, or is practicing radiologic tech-
37 nology under an assumed name;

38 (p) having [~~his or her~~] such person's license to practice as a radio-
39 logic technologist or limited-scope radiographer revoked, suspended or
40 having other disciplinary action taken, or having [~~his or her~~] such
41 person's application for a license refused, revoked or suspended or
42 having voluntarily or otherwise surrendered [~~his or her~~] such person's
43 license after a disciplinary action was instituted by a duly authorized
44 professional disciplinary agency of another state, where the conduct
45 resulting in the revocation, suspension or other disciplinary action
46 involving the license or refusal, revocation or suspension of an appli-
47 cation for a license or the surrender of the license would, if committed
48 in New York state, constitute professional misconduct under the laws of
49 New York state. A radiologic technologist or limited-scope radiographer
50 licensed in New York state who is also licensed or seeking licensure in
51 another state must immediately report to the department any revocation,
52 suspension or other disciplinary action involving the out-of-state
53 license or refusal, revocation or suspension of an application for an
54 out-of-state license or the surrender of the out-of-state license.

55 § 6. This act shall take effect immediately.